

I.Heartwin Wessley Biju vs State Represented By on 10 April, 2008

Author: S.Nagamuthu

Bench: S.Nagamuthu

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

DATED: 10/04/2008

CORAM

THE HONOURABLE MR.JUSTICE S.NAGAMUTHU

CRL.O.P.(MD).No.9832 of 2007

and

M.P.(MD).Nos.2 and 3 of 2007

1.I.Heartwin Wessley Biju

2.Jessintha Mary

3.Joseph Kelin

4.Rajeswari

5.Raja Sulochana

6.Jeyakumari

... Petitioners

vs.

1.State represented by

The Inspector of Police,
All Women Police Station,
Nagercoil,
Kanyakumari District.
(Crime No.2/2005)

2.Sahaya Jaculin

... Respondents

Criminal Original Petition filed under Section 482 of the Code of Criminal Procedure praying to call for the entire records relating to the impugned charge sheet laid in C.C.No.95 of 2005 on the file of Judicial Magistrate, Boothapandi, Kanyakumari District and quash the same.

!For Petitioners ... Mr.A.Saravanan

^For 1st Respondent ... Mr.L.Murugan,
Government Advocate (Crl.side)

For 2nd Respondent ... Mr.Veera Kathiravan

:ORDER

The petitioners are the accused in C.C.No.95 of 2005 on the file of the learned Judicial Magistrate, Boothapandi, Kanyakumari District. They are facing prosecution for offences under Sections 498(A) and 406 of the Indian Penal Code and Sections 3, 4 and 6 of Dowry Prohibition Act. The petitioners have come forward with the present petition seeking to quash the said case.

2. The learned counsel for the petitioners would submit that even in the statement of the de facto complainant, it has been stated that she was already married to some other person and from the said statement, it could be inferred that the so called marriage between her and the first accused is not valid and, therefore, an offence under Section 498(A) of the Indian Penal Code could not be attracted. The learned counsel, therefore, requests the Court to quash the charge sheet.

3. The learned counsel appearing for the de facto complainant would resist the said argument of the learned counsel for the petitioners. He would submit that the de facto complainant is the legally wedded wife of the first accused. The charge sheet was laid in the case in the year 2005 and the present petition for quashing has been filed in the year 2007, after a delay of two years, only with a view to drag on the proceedings. He would also submit that after the filing of the charge sheet in this case, the first petitioner has instituted a civil suit seeking for the relief of a declaration that the de facto complainant is not the legally wedded wife of the first petitioner.

4. I have considered the rival submissions.

5. Admittedly, there is a civil suit now pending, wherein the first petitioner has prayed for a declaration that the de facto complainant is not the legally wedded wife. When the civil Court is considering the said issue, it will be highly premature and improper for this Court to give a finding that the de facto complainant is not the legally wedded wife of the first petitioner and to quash the case.

6. Assuming that the alleged marriage between the second respondent and the first petitioner is void as the same is against Section 5 of the Hindu Marriage Act, still as held by the Hon'ble Supreme Court in Reema Aggarwal ..Vs.. Anupam and others reported in 2004 (3) S.C.C. 199, the petitioners are liable to be punished if the allegations made against them that they harassed her for dowry are true. The question whether the marriage is valid or not is irrelevant insofar as the offences under Sections 304-B or 498-A I.P.C are concerned. The Hon'ble Supreme Court has given an interpretation construing the expression "husband" to cover a person who enters into marital relationship under the colour of such proclaimed or feigned status of a husband. The law laid down by the Hon'ble Supreme Court in the said case is as follows:-

"18. The concept of dowry is intermittently linked with a marriage and the provisions of the Dowry Act apply in relation to marriages. If the legality of the marriage itself is an issue, further legalistic problems do arise. If the validity of the marriage itself is under legal scrutiny, the demand of dowry in respect of an invalid marriage would be legally not recognizable. Even then the purpose for which Sections 498-A and 304-B IPC and Section 113-B of the Indian Evidence Act, 1872 (for short the Evidence Act) were introduced, cannot be lost sight of. Legislation enacted with some policy to curb and alleviate some public evil rampant in society and effectuate a definite public purpose or benefit positively requires to be interpreted with a certain element of realism too and not merely pedantically or hypertechnically. The obvious objective was to prevent harassment to a woman who enters into a marital relationship with a person and later on, becomes a victim of the greed for money. Can a person who enters into a marital arrangement be allowed to take shelter behind a smokescreen to contend that since there was no valid marriage, the question of dowry does not arise? Such legalistic niceties would destroy the purpose of the provisions. Such hairsplitting legalistic approach would encourage harassment to a woman over demand of money. The nomenclature dowry does not have any magic charm written over it. It is just a label given to demand of money in relation to marital relationship. The legislative intent is clear from the fact that it is not only the husband but also his relations who are covered by Section 498-A. The legislature has taken care of children born from invalid marriages. Section 16 of the Marriage Act deals with legitimacy of children of void and voidable marriages. Can it be said that the legislature which was conscious of the social stigma attached to children of void and voidable marriages closed its eyes to the plight of a woman who unknowingly or unconscious of the legal consequences entered into the marital relationship? If such restricted meaning is given, it would not further the legislative intent. On the contrary, it would be against the concern shown by the legislature for avoiding harassment to a woman over demand of money in relation to marriages. The first exception to Section 494 has also some relevance. According to it, the offence of bigamy will not apply to any person whose marriage with such husband or wife has been declared void by a court of competent jurisdiction. It would be appropriate to construe the expression husband to cover a person who enters into marital relationship and under the colour of such proclaimed or feigned status of husband subjects the woman concerned to cruelty or coerces her in any manner or for any of the purposes enumerated in the relevant provisions Sections 304-B / 498-A, whatever be the legitimacy of the marriage itself for the limited purpose of Sections 498-A and 304-B IPC. Such an interpretation, known and recognized as purposive construction has to come into play in a case of this nature. The absence of a definition of husband to specifically include such persons who contract marriages ostensibly and cohabit with such woman, in the purported exercise of their role and status as husband is no ground to exclude them from the purview of Section 304-B or 498-A IPC, viewed in the context of the very object and aim of the legislations introducing those provisions.

27. Whether the offences are made out is a matter of trial. The High Court was not justified in summarily rejecting the application for grant of leave. It has a duty to indicate reasons when it refuses to grant leave. Any casual or summary disposal would not be proper. (State of Punjab v. Bhag Singh (2004 (1) S.C.C. 547)). In the circumstances, we set aside the impugned order of the High Court and remit the matter back to the High Court for hearing the matter on merits as according to us points involved require adjudication by the High Court. The appeal is allowed to the extent indicated."

7. In view of the above law laid down by the Hon'ble Supreme Court, in my considered opinion, though there is an admission in the complaint itself that the second respondent was already married to someone else, still for the limited purpose of Section 498-A I.P.C., the first petitioner would fall within the ambit of the term "husband" and so, the prosecution is maintainable as against him as well as others, who are his relatives. Yet another aspect to be seen in this case is that apart from Section 498-A I.P.C., there is another charge also under Section 406 I.P.C. The learned counsel for the petitioners has not advanced any argument in respect of the same.

8. For all the reasons stated above, I find no reason to quash the charge sheet. Hence, this Petition is dismissed. Consequently, the connected miscellaneous petitions are also dismissed.

SML / Dpn/-

To

1.The Judicial Magistrate, Boothapandi, Kanyakumari District

2.The Inspector of Police, All Women Police Station, Nagercoil, Kanyakumari District.

(Crime No.2/2005)

3.The Public Prosecutor, Madurai Bench of Madras High Court, Madurai.